

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK
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EMMANUEL CAYEMITTES,

Plaintiff,

15 CV 2364 (WFK) (RLM)

-against-

THE CITY OF NEW YORK, HUGO
ORTEGA, SOPHIA CARSON, ADAN
MUÑOZ, and JOHN DOE,

FIRST AMENDED COMPLAINT

Defendants.

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Plaintiff Emmanuel Cayemittes, by his attorneys Lumer & Neville, as and for
his First Amended Complaint, hereby alleges as follows, upon information and belief:

PARTIES, VENUE and JURISDICTION

1. At all times hereinafter mentioned, plaintiff Emmanuel Cayemittes was
an adult male resident of Kings County, within the State of New York.

2. At all relevant times hereinafter mentioned, defendant City of New
York (“New York City”) was and is a municipal corporation duly organized and existing
under and by virtue of the laws of the State of New York and acts by and through its
agencies, employees and agents, including, but not limited to, the New York City Police
Department (“NYPD”), and their employees.

3. At all relevant times hereinafter mentioned, defendant Hugo Ortega,
Tax Number 935438, was employed by the City of New York as a member of the NYPD.
Ortega is sued herein in his individual capacity.

4. At all relevant times hereinafter mentioned, defendant Sophia Carson, Shield 27627, was employed by the City of New York as a member of the NYPD. Carson is sued herein in her individual capacity.

5. At all relevant times hereinafter mentioned, defendant Adan Muñoz, Tax Number 935372, was employed by the City of New York as a member of the NYPD. Muñoz is sued herein in his individual capacity.

6. At all relevant times hereinafter mentioned, defendants John Doe was employed by the City of New York as a member of the NYPD. The actual and complete identity of John Doe is not known to plaintiff at this time. John Doe is sued herein in his individual capacity.

7. This Court has jurisdiction of this action pursuant to 28 U.S.C. §§ 1331 and 1343, as well as 42 U.S.C. § 1983.

8. Venue is properly laid, pursuant to 28 U.S.C. Section 1391, et seq., in the Eastern District of New York, where the plaintiff and defendant City of New York reside, and where the majority of the actions complained of herein occurred.

RELEVANT FACTS

9. On April 4, 2014, at or about 6:45 P.M., plaintiff was lawfully present at or about the intersection of Riverdale Avenue and Wyona Street, in Kings County, New York.

10. Plaintiff had not been engaged in any criminal conduct, nor was he

engaged in any conduct that could reasonably be viewed as criminal.

11. Despite the absence of sufficient legal cause, defendants stopped and searched plaintiff.

12. The defendants were on duty and assigned to the NYPD's Narcotics Bureau Brooklyn North ("NBBN").

13. Defendant Adan Muñoz, who then had the rank of "Sergeant," was the supervising officer on the scene.

14. One of the defendants grabbed plaintiff's face.

15. One of the defendants, believed to be Sergeant Muñoz, punched plaintiff in the face.

16. The defendants assaulted plaintiff and he was struck and kneed several times.

17. Although plaintiff was not in possession of any contraband or engaged in any criminal or unlawful conduct, he was handcuffed and taken into the defendants' custody.

18. Plaintiff was placed in a police van and eventually transported to a local area police precinct station house in Kings County.

19. Plaintiff was then transported from the precinct to Kings County Hospital where he was diagnosed with an orbital wall fracture and multiple hematomas.

20. Plaintiff was later transported to Kings County Central Booking, where he was imprisoned for a period of many more hours.

21. While plaintiff was imprisoned by the defendants, defendant Ortega completed arrest paperwork in which he expressly claimed that he personally observed crack cocaine in plaintiff's hand and that plaintiff then swallowed the crack cocaine in order to prevent the defendants' from recovering it.

22. Ortega further claimed that plaintiff resisted arrest by flailing his arms and otherwise engaging in conduct to prevent the defendants from handcuffing him.

23. These claims were materially false and Ortega, and the other defendants, knew them to be false at the time they were made.

24. Ortega forwarded these false allegations to both the Kings County District Attorney ("KCDA") in order to justify the arrest and use of force against plaintiff, and to persuade the KCDA to initiate the plaintiffs' criminal prosecution.

25. The defendants knew and understood that plaintiff had been arrested and subjected to force, that there was no basis for the arrest of plaintiff, and that the force used was unreasonable and excessive.

26. The defendants also knew that Ortega, as the arresting officer, would be creating arrest paperwork that would contain lies, material omissions, and other fabrications designed to falsely create the impression that probable cause existed for plaintiff's arrest and to justify the defendants' use of force.

27. The defendants also knew that Ortega would then forward this paperwork to the KCDA to try to persuade the KCDA to initiate the plaintiff's prosecution.

28. The defendants knew and understood that the KCDA, in evaluating

whether to commence a criminal prosecution against the plaintiff, would rely on the truthfulness of their factual claims and statements, and would proceed on as assumption that all of these factual statements and claims were truthful in all material respects, and that no material or exculpatory information had been withheld.

29. As a direct result of these false allegations by the defendants, the plaintiff was were criminally charged by the KCDA under docket 2014KN023887 with one count of attempted tampering with physical evidence under NY Penal Law §215.40(2), and one count of resisting arrest under NY Penal §205.30.

30. Plaintiff was in defendants' custody from the time of his arrest on April 4 until his arraignment on April 7, 2014.

31. Although the attempted tampering charge was an E felony, the case was never presented to a grand jury and plaintiff was not indicted. However, plaintiff was required to return to court on threat of imprisonment.

32. After several appearances, the charges against plaintiff were adjourned in contemplation of dismissal.

33. The arrest and imprisonment of plaintiff was objectively unreasonable.

34. At no time did there exist any basis to utilize any level of force against the plaintiff, meaning the chasing, much less the force actually employed, nor could any of the defendants have reasonably believed that such force was necessary.

35. At no time did any of the defendants take any steps to intervene in, prevent, or otherwise limit the above mentioned misconduct.

36. That at all times relevant herein, the defendants and their colleagues were on duty and acting within the scope of their employment, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

FIRST CAUSE OF ACTION

37. Plaintiff repeats the preceding allegations as though stated fully herein.

38. The individual defendants willfully and intentionally seized, searched, detained, and arrested plaintiff without probable cause, and without a reasonable basis to believe such cause existed.

39. The individual defendants willfully and intentionally subjected plaintiff to physical force in excess of what was reasonable under the circumstances causing plaintiff to suffer physical injuries, and did so without a reasonable basis to believe that such conduct was appropriate, reasonable, lawful, or necessary.

40. The individual defendants deliberately forwarded fabricated evidence to justify and cover up the false arrest of, and use of excessive force against plaintiff, and forwarded said fabrications to the KCDA, resulting in the deprivation of plaintiff's liberty.

41. To the extent that any one of the individual defendants did not personally engage in the above such conduct, he or she witnessed this conduct, had ample opportunity to intervene, and failed to do so.

42. By so doing, the individual defendants subjected the plaintiff to (i) false arrest and imprisonment, (ii) excessive force, and (iii) the deprivation of his right to a fair trial

through the use of fabricated evidence, and thereby violated and aided and abetted in the violation of plaintiff's rights under the Fourth, Sixth and Fourteenth Amendments of the United States Constitution.

43. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of his constitutional rights.

SECOND CAUSE OF ACTION

44. Plaintiff repeats the preceding allegations as though stated fully herein.

45. The individual defendants' false arrest and assault of plaintiff, as well as their fabrication of evidence against plaintiff to justify their unconstitutional conduct, and their failure to intervene or otherwise act to prevent or mitigate the harms being inflicted by their fellow defendants, were carried out in accordance with an existing plan or policy created or otherwise condoned by the municipal defendant designed to increase the number of arrests made without regard to probable cause.

46. More precisely, under this policy or plan, officers within the Narcotics Division generally, and NBBD in particular, would knowingly make arrests of individuals regardless of whether there was any factual basis for the charges. The arresting officer(s) would then make false statements of fact as to seeing the individual(s) being arrested in actual or constructive possession of the narcotics in question.

47. The purpose of this policy or plan was to generate large numbers of

arrests to help the NYPD create a false impression of positive activity by their officers.

48. In addition, members of the Narcotics Division are evaluated, at least in part, on the basis of their “activity” which is measured by the number of arrests made, search warrants secured, and other, similar criteria. Thus, members of the Narcotics Division routinely make arrests and engage in other police activity without sufficient legal cause in order to raise their levels of “activity” and improve the perception of their job performance.

49. The NYPD generally, and NBBD in particular, tracks the number of arrests made by each officer but does not take into account the outcome of these arrests, even though this information is available to the NYPD. As a result, members of the Narcotics Division are well aware that (a) they are being evaluated based on, in large part, the number of arrests made, and (b) their supervisors do not care whether these arrests lead to actual criminal prosecutions, much less convictions.

50. More precisely, under this policy or plan, officers are encouraged or pressured to make as many arrests as possible, which has caused and will continue to cause, its officers, including the individual defendants and their colleagues, to make arrests regardless of whether there was any factual basis for the charges. The officer(s) would then fabricate claims of having seen the person(s) being arrested in possession of weapons or illegal narcotics or otherwise engaged in criminal activity.

51. The purpose of this policy or plan was to generate large numbers of arrests within the individual commands therein, in order to create a false or misleading

impression of positive activity by their officers and satisfying internal quotas.

52. In addition, members of the NYPD are evaluated, at least in part, on the basis of their “activity” which is measured by the number of arrests made, summonses issued, and other, similar criteria. Members of the NYPD routinely make arrests and engage in other police activity without sufficient legal cause in order to raise their levels of “activity” and improve the perception of their job performance.

53. The policy or plan was kept in effect from, at least, 2006 through, at least, the date of plaintiff’s arrest, despite the municipal defendant’s knowledge that county prosecutors were often not charging the individuals arrested, or otherwise not actively pursuing their prosecutions, or that there was insufficient evidence to justify the arrests and illegal searches, or that the arresting officers were seeking to bolster the arrests with false allegations, and that the prosecutors often had found insufficient cause to justify the imposition of charges or continued prosecution if charges were filed.

54. Rather than take steps to abolish this plainly unconstitutional and unlawful police, the municipal defendant continued to tacitly endorse this policy of deliberate misconduct.

55. In October 2011, following a bench trial in New York State Supreme Court, Kings County, under indictment number 06314-2008, former NYPD narcotics officer Jason Arbeeny was convicted of planting drugs on two individuals and falsifying arrest reports. Before issuing a verdict of guilty, the trial judge scolded the NYPD for what he described as a “widespread culture of corruption endemic in its drug units.” The judge

further stated that the testimony demonstrated that the NYPD narcotics divisions maintain a “cowboy culture” and that he was “shocked, not only by the seeming pervasive scope of misconduct but even more distressingly by the seeming casualness by which such conduct is employed.”

56. In an Order dated November 25, 2009, in *Colon v. City of New York*, 09-CV-0008 (E.D.N.Y.), the Hon. Jack B. Weinstein stated:

Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration -- through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department -- there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.

57. It is also manifestly clear through the litigation brought in the Eastern and Southern Districts of New York that countless hundreds, if not thousands, of civilians have alleged that members of the NBBD have deliberately arrested them without probable cause. Thus, even if the municipal defendant was not the architect of the policy causing these unlawful arrests, they were certainly on notice of the practice.

58. It is therefore clear that the municipal defendant has not only tolerated, but actively fostered a lawless atmosphere within the NYPD and that the City of New York, at the bare minimum, has been on notice was deliberately indifferent to the risk that the undue emphasis on arrest quotas, or minimum activity levels, particularly when coupled with

a deliberately indifferent level of supervision, would lead to the violation of individuals' constitutional rights in general, and caused the violation of plaintiffs' rights in particular.

59. By reason thereof, the municipal defendant has violated 42 U.S.C. §1983 and caused plaintiff to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of his constitutional rights.

DEMAND FOR A JURY TRIAL

Pursuant to Fed. R. Civ. P. 38, plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

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WHEREFORE, the plaintiff demands judgment against defendants jointly and severally as follows:

- i. on the first cause of action, actual and punitive damages in an amount to be determined at trial;
- ii. on the second cause of action, actual damages in an amount to be determined at trial;
- iii. statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law, disbursements, and costs of the action; and
- iv. such other relief as the Court deems just and proper.

Dated: New York, New York
October 28, 2015

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